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FIRST ADVANTAGE BACKGROUND
SERVICES CORP.

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

SAN FRANCISCO DIVISION

MEGHAN ROSENBERG; an individual, Plaintiff, v. FIRST ADVANTAGE BACKGROUND SERVICES CORP.; and DOES 1 to 50, inclusive, Defendants.	Case No. 3:26-cv-07593-TLT Hon. Trina L. Thompson **DEFENDANT FIRST ADVANTAGE BACKGROUND SERVICES CORP.'S ANSWER AND AFFIRMATIVE AND OTHER DEFENSES TO PLAINTIFF'S COMPLAINT**

Defendant FIRST ADVANTAGE BACKGROUND SERVICES CORP., by its attorneys and pursuant to Rules 8 and 12 of the Federal Rules of Civil Procedure, hereby answers Plaintiff's Complaint and asserts its affirmative and other defenses as follows:

STATEMENT OF ACTION

COMPLAINT ¶1:

This action arises from the inaccurate and incomplete investigative consumer report (the "Report") prepared by Defendant First Advantage in connection with Plaintiff's job application.

ANSWER:

First Advantage denies the allegations in Paragraph No. 1 of the Complaint.

COMPLAINT ¶2:

Despite Plaintiff's submission of documentation, the Report continued to misstate her background history, failed to reflect accurate information, and ultimately caused the rescission of Plaintiff's employment opportunity.

ANSWER:

First Advantage denies the allegations in Paragraph No. 2 of the Complaint.

COMPLAINT ¶3:

Upon information and belief, First Advantage failed to follow reasonable procedures to assure maximum possible accuracy of the information it reported, and Defendants ignored their obligations under federal and California consumer protection statutes by preparing and furnishing this inaccurate report, and in their actions once Plaintiff disputed the Report.

ANSWER:

First Advantage denies the allegations in Paragraph No. 3 of the Complaint.

COMPLAINT ¶4:

Specifically, Defendant violated the Fair Credit Reporting Act ("FCRA"), 15 U.S.C. § 1681 *et seq.*, and the California Investigative Consumer Reporting Agencies Act ("ICRAA"), Cal. Civ. Code § 1786 *et seq.*, by failing to maintain procedures to assure maximum possible accuracy, and by failing to conduct a reasonable reinvestigation upon receiving notice of dispute.

ANSWER:

First Advantage denies the allegations in Paragraph No. 4 of the Complaint.

COMPLAINT ¶5:

Defendant also violated the FCRA and ICRAA by furnishing an inaccurate investigative consumer report for employment purposes without complying with the statutes' certification requirements, and by failing to timely and meaningfully correct the disputed information after receiving Plaintiff's dispute.

ANSWER:

First Advantage denies the allegations in Paragraph No. 5 of the Complaint.

COMPLAINT ¶6:

As a result of Defendant's conduct, Plaintiff was denied employment, suffered financial loss, and experienced emotional distress and reputational harm.

ANSWER:

First Advantage denies the allegations in Paragraph No. 6 of the Complaint.

COMPLAINT ¶7:

Plaintiff now brings this action for violations of (1) the ICRAA and (2) the FCRA, and seeks actual, statutory, and punitive damages, and all other relief authorized by law.

ANSWER:

First Advantage admits that Plaintiff brings this action under the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.* ("FCRA") and California's Investigative Consumer Reporting Agencies Act, Cal. Civ. Code § 1786 *et seq.* ("ICRAA") to recover her alleged damages and obtain other relief. First Advantage denies that it violated the FCRA or the ICRAA, and further denies that Plaintiff is entitled to any relief whatsoever. First Advantage denies the remaining allegations in Paragraph No. 7 of the Complaint.

JURISDICTION AND VENUE

COMPLAINT ¶8:

Jurisdiction of this Court arises pursuant to 28 U.S.C. § 1331 due to federal causes of action under 15 U.S.C. § 1681, and under 28 U.S.C. § 1332 due to diversity of citizenship. This Court has supplemental jurisdiction over Plaintiff's state-law claim under the Investigative Consumer Reporting Agencies Act pursuant to 28 U.S.C. § 1367(a).

ANSWER:

First Advantage admits that this Court has subject-matter jurisdiction over Plaintiff's FCRA claim pursuant to 28 U.S.C. § 1331, and supplemental jurisdiction over Plaintiff's ICRAA claim pursuant to 28 U.S.C. § 1367(a). First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations regarding diversity of citizenship under 28 U.S.C. § 1332.

COMPLAINT ¶9:

Jurisdiction is proper in this Court because this case involves the violation of federal statutes, over which this Court has jurisdiction without regard to the amount in controversy; and, to the extent jurisdiction is premised on diversity of citizenship, the amount in controversy exceeds $75,000, exclusive of interest and costs.

ANSWER:

First Advantage admits that this Court has subject-matter jurisdiction over Plaintiff's FCRA claim without regard to the amount in controversy. First Advantage denies that it violated the FCRA, and further denies that Plaintiff is entitled to any relief whatsoever. First Advantage denies the remaining allegations in Paragraph No. 9 of the Complaint.

COMPLAINT ¶10:

Because all Defendants conduct business within the State of California, personal jurisdiction is established.

ANSWER:

First Advantage admits that it conducts business within the State of California and that it is subject to this court's personal jurisdiction with respect to this action. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations regarding the Doe Defendants.

COMPLAINT ¶11:

Venue is proper pursuant to 28 U.S.C. § 1391 for the following reasons: (i) Plaintiff resides in this judicial district; (ii) the conduct complained of herein occurred within this judicial district; and (iii) Defendant conducted business within this judicial district at all times relevant.

ANSWER:

First Advantage admits that venue is proper in this judicial district. First Advantage also admits that it conducts business in this judicial district. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations regarding Plaintiff's residence. First Advantage denies the remaining allegations in Paragraph No. 11 of the Complaint.

COMPLAINT ¶12:

Divisional Assignment: Pursuant to Civil Local Rules 3-2(c) and (d), this action arises in Contra Costa County, where Plaintiff resides, and concerns a position based in Oakland, Alameda County; accordingly, this action is properly assigned to the San Francisco Division or the Oakland Division of this Court.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 12 of the Complaint.

PARTIES

COMPLAINT ¶13:

Plaintiff MEGHAN ROSENBERG is a natural person and resident of Contra Costa County, California.

ANSWER:

Upon information and belief, First Advantage admits the allegations in Paragraph No. 13 of the Complaint.

COMPLAINT ¶14:

Plaintiff is a "consumer" as that term is defined by the FCRA and the ICRAA.

ANSWER:

First Advantage admits the allegations in Paragraph No. 14 of the Complaint.

COMPLAINT ¶15:

Defendant FIRST ADVANTAGE BACKGROUND SERVICES CORP. is an investigative consumer reporting agency as defined by the FCRA and ICRAA with its principal address of business in 1 Concourse Pkwy NE, Suite 200, Atlanta, GA 30328. The adverse action notification dated February 12, 2026 issued in connection with Plaintiff's application expressly identified the consumer reporting agency that provided the Report as "First Advantage," P.O. Box 105292, Atlanta, GA 30348.

ANSWER:

First Advantage denies that it is an "investigative consumer reporting agency" under the FCRA. First Advantage admits that some of its business activities make it a "investigative consumer reporting agency" under the ICRAA as to those activities only. First Advantage also admits that its principal place of business is located at 1 Concourse Parkway NE, Suite 200, Atlanta, Georgia 30328. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the third sentence of Paragraph No. 15 of the Complaint.

COMPLAINT ¶16:

Plaintiff is informed and believes, and thereon alleges, that First Advantage Corporation, the ultimate corporate parent of First Advantage, acquired Sterling Check Corp. and its operating subsidiary Sterling Infosystems, Inc. (collectively, "Sterling") in or around late 2024, and that First Advantage and Sterling thereafter operated blended, commonly controlled dispute-resolution and file-disclosure operations. Communications concerning Plaintiff's file were transmitted through both First Advantage–branded and Sterling-branded channels, including a copy of Plaintiff's background check file provided to Plaintiff on or about January 22, 2026, a Sterling-branded dispute-intake portal through which Plaintiff submitted her dispute and supporting documentation, and dispute-resolution email addresses maintained at both fadv.com and sterlingcheck.com. To the extent Sterling Infosystems, Inc., Sterling Check Corp., or any other affiliate of First Advantage prepared, furnished, or reinvestigated any portion of the Report, each such entity acted as the agent, alter ego, and/or joint venturer of First Advantage and with First Advantage's knowledge, authorization, and ratification, and each such entity is sued herein as a DOE Defendant, with Sterling Infosystems, Inc. and Sterling Check Corp. designated as DOES 1 and 2, respectively. Plaintiff will amend this Complaint to allege their true names and capacities when ascertained.

ANSWER:

First Advantage admits that First Advantage Corporation acquired Sterling Check Corp. First Advantage denies the remaining allegations in Paragraph No. 16 of the Complaint.

COMPLAINT ¶17:

The true names and capacities, whether individual, corporate (including officers and directors thereof), associate or otherwise of Defendants sued herein as Does 1 through 50, inclusive, are unknown to Plaintiff, who therefore sues these Defendants by such fictitious names. Plaintiff is informed and believes, and thereon alleges that each Named Defendant and each Defendant designated as a Doe is involved in or is in some manner responsible as an officer, director, managing agent, principal, beneficiary, agent, co-conspirator, joint venturer, alter ego, third-party beneficiary, or otherwise, for the agreements, transactions, events and/or acts hereinafter described, and thereby proximately caused injuries and damages to Plaintiff. Plaintiff requests that when the true names and capacities of these DOE Defendants are ascertained, they may be inserted in all subsequent proceedings, and that this action may proceed against them under their true names.

ANSWER:

First Advantage denies the allegations in Paragraph No. 17 of the Complaint.

FACTUAL ALLEGATIONS

COMPLAINT ¶18:

Plaintiff applied for employment with Blue Shield of California and/or its affiliated entity Stellarus (collectively, "Blue Shield") for a senior-level communications position for which First Advantage prepared and furnished a background screening report concerning Plaintiff, which Blue Shield used in connection with Plaintiff's employment application. The report identified, among other items, "Employment Verification — Rosenberg, Meghan Katherine, SoFi Technologies" as "REVIEW," and identified the drug-testing component both as "REVIEW" and "PASSED."

ANSWER:

First Advantage denies the allegations in the first sentence of Paragraph No. 18 of the Complaint. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the second sentence of Paragraph No. 18 of the Complaint.

COMPLAINT ¶19:

Plaintiff completed the required drug screening on or about January 2, 2026. At all relevant times, Plaintiff had lawful prescription medications that could cause a false positive, and she provided valid prescription information and supporting medical documentation during the screening process.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 19 of the Complaint.

COMPLAINT ¶20:

Despite Plaintiff's lawful prescriptions and supporting documentation, the drug-testing component was initially mishandled and/or misreported as an adverse or disqualifying issue. Plaintiff was forced to spend approximately ten days trying to correct the issue, including making approximately nine follow-up calls, sending approximately seventeen emails, participating in multiple prescription-verification attempts, and obtaining additional documentation from her physician. During these telephone calls, Plaintiff was repeatedly and falsely accused of illicit drug use, including accusations that she had used methamphetamine, notwithstanding the lawful prescriptions and supporting medical documentation Plaintiff had already provided.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 20 of the Complaint.

COMPLAINT ¶21:

On or about January 13, 2026, after being contacted by the Medical Review Officer, Plaintiff immediately disclosed the relevant prescription and over-the-counter medications and disputed the false-positive implication.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 21 of the Complaint.

COMPLAINT ¶22:

The Medical Review Officer ultimately amended the false-positive result and confirmed that the initial positive result was incorrect. Within approximately twenty-four hours, First Advantage accepted that correction, and the corrected report reflected the drug screen as "PASSED."

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first sentence of Paragraph No. 22 of the Complaint. First Advantage denies the allegations in the second sentence of Paragraph No. 22 of the Complaint.

COMPLAINT ¶23:

Even after First Advantage accepted the correction and the drug screen reflected "PASSED," First Advantage continued to report, furnish, and/or allow the drug-screen item to remain as an adverse or unresolved issue. Blue Shield's later adverse-action notice expressly listed the "Drug & Health Test" as one of the stated reasons for disqualification and for the decision not to employ Plaintiff.

ANSWER:

First Advantage denies the allegations in the first sentence of Paragraph No. 23 of the Complaint. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the second sentence of Paragraph No. 23 of the Complaint.

COMPLAINT ¶24:

The second issue concerned Plaintiff's SoFi Technologies employment verification. Plaintiff had in fact worked for SoFi Technologies from approximately November 2020 through February 21, 2025. When completing her application materials, Plaintiff mistakenly left SoFi appearing as a current employer, which made her tenure appear slightly longer than it actually was.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 24 of the Complaint.

COMPLAINT ¶25:

Plaintiff did not conceal the SoFi issue. On or about December 11, 2025, Plaintiff attended an in-person dinner meeting with Caitlyn Coverly, a Blue Shield hiring employee and/or hiring manager for the position. During that conversation, Plaintiff proactively disclosed the SoFi employment discrepancy and asked whether she should amend or update her application.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 25 of the Complaint.

COMPLAINT ¶26:

Plaintiff was advised not to make changes because doing so could slow down the nearly finalized offer process. Plaintiff has text messages confirming the dinner meeting and related communications.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 26 of the Complaint.

COMPLAINT ¶27:

Plaintiff later disclosed and clarified the SoFi issue again when Blue Shield raised questions about it. Plaintiff provided clarification, employment dates, and supporting documentation, and she promptly updated her candidate profile to reflect the correct information. Plaintiff's supporting documentation included, among other things, a promotion letter signed by a SoFi manager and official SoFi company-letterhead documents bearing Plaintiff's title, any of which would have readily confirmed Plaintiff's actual SoFi employment history had Defendants conducted a reasonable investigation and/or reinvestigation.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first and second sentences of Paragraph No. 27 of the Complaint. First Advantage denies the allegations in the third sentence of Paragraph No. 27 of the Complaint.

COMPLAINT ¶28:

Despite Plaintiff's disclosure, clarification, and supporting documentation, First Advantage continued to report, furnish, and/or allow the SoFi employment-verification item to remain as an adverse or unresolved issue. The report continued to mark the SoFi verification as "REVIEW," and Blue Shield's adverse-action notice expressly listed the SoFi employment-verification item as a stated reason for disqualification.

ANSWER:

First Advantage denies the allegations in the first sentence of Paragraph No. 28 of the Complaint. First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the second sentence of Paragraph No. 28 of the Complaint.

COMPLAINT ¶29:

After receiving the pre-adverse-action notice in late January 2026, Plaintiff submitted a formal written dispute dated January 30, 2026 to First Advantage (through both its First Advantage–branded and Sterling-branded dispute channels) and Blue Shield. Plaintiff disputed both stated reasons for potential disqualification, submitted supporting documentation, and requested that the drug-screen item and SoFi employment-verification item no longer be treated as bases for disqualification.

ANSWER:

First Advantage denies the allegations in Paragraph No. 29 of the Complaint.

COMPLAINT ¶30:

Plaintiff's January 30, 2026 dispute was detailed, specific, and supported by documents. It identified the corrected drug-screen result, explained that the initial false positive had been amended, and clarified the SoFi employment timeline and related discrepancy.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 30 of the Complaint.

COMPLAINT ¶31:

Notwithstanding Plaintiff's dispute and supporting documentation, Blue Shield issued an adverse-action notice dated February 12, 2026 stating that it was unable to offer Plaintiff employment and expressly identifying both the drug-screen item and the SoFi employment-verification item as reasons for potential disqualification.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 31 of the Complaint.

COMPLAINT ¶32:

Plaintiff's expected start date for the Blue Shield position was January 6, 2026. Instead of starting work, Plaintiff was left in limbo for more than five weeks while the inaccurate, incomplete, disputed, and/or misleading reporting remained unresolved and continued to be used against her. As a direct result, Plaintiff lost the Blue Shield employment opportunity.

ANSWER:

Plaintiff lacks knowledge or information sufficient to form a belief as to the truth of the allegations in the first sentence of Paragraph No. 32 of the Complaint. First Advantage denies the allegations in the second and third sentences of Paragraph No. 32 of the Complaint.

COMPLAINT ¶33:

Plaintiff suffered economic damages, including lost wages from January 6, 2026 forward, lost benefits, lost bonus compensation, lost total compensation, lost earning opportunity, and lost job-search time. The Blue Shield position carried an annual base salary of approximately $200,000. Plaintiff also lost a competing employment opportunity that she declined while waiting to begin work at Blue Shield. That competing opportunity was for similar compensation and, in some respects, higher compensation, including a higher bonus opportunity and/or greater total compensation.

ANSWER:

First Advantage lacks knowledge or information sufficient to form a belief as to the truth of the allegations in Paragraph No. 33 of the Complaint.

COMPLAINT ¶34:

Plaintiff also incurred out-of-pocket loss and expended substantial personal time attempting to correct the false and/or misleading drug-screen issue, including paying for an additional drug test herself, obtaining additional medical documentation, and repeatedly communicating with the Medical Review Officer, Blue Shield, and others in an effort to save the employment opportunity.

ANSWER:

First Advantage denies the allegations in Paragraph No. 34 of the Complaint.

COMPLAINT ¶35:

Plaintiff suffered substantial emotional distress, anxiety, humiliation, frustration, embarrassment, reputational harm, and loss of peace of mind. Plaintiff was forced to repeatedly disclose private prescription, medical, and health information while her employment opportunity remained in jeopardy and to defend herself against the implication that she had failed or mishandled a drug screen. Being falsely branded an illicit drug user — including false accusations of methamphetamine use — was degrading and humiliating. Plaintiff's distress was further aggravated because Blue Shield was a prospective employer where Plaintiff's father had worked for more than twelve years, making the false implication and loss of the opportunity especially humiliating and distressing. Plaintiff's damages are real, substantial, and ongoing, including loss of employment, loss of an alternate job opportunity, loss of income, out-of-pocket expenses, lost time, emotional distress, humiliation, reputational harm, and related consequential harm.

ANSWER:

First Advantage denies the allegations in Paragraph No. 35 of the Complaint.

FIRST CAUSE OF ACTION

Violation of the Investigative Consumer Reporting Agencies Act (ICRAA)

[Against All Defendants]

COMPLAINT ¶36:

Plaintiff hereby re-alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

ANSWER:

First Advantage restates its answers to Paragraph Nos. 1 through 35 as its answer to Paragraph No. 36 of the Complaint.

COMPLAINT ¶37:

Plaintiff is a "consumer" as defined by Cal. Civ. Code § 1786.2(b). First Advantage is an "investigative consumer reporting agency" as defined by Cal. Civ. Code § 1786.2(d).

ANSWER:

First Advantage admits the allegations in the first sentence of Paragraph No. 37 of the Complaint. First Advantage also admits that some of its business activities make it an "investigative consumer reporting agency" under the ICRAA as to those activities only. First Advantage denies the remaining allegations in Paragraph No. 37 of the Complaint.

COMPLAINT ¶38:

The Report constitutes an "investigative consumer report" under Cal. Civ. Code § 1786.2(c), as it was used for employment purposes and included information on Plaintiff's character, general reputation, and mode of living obtained through personal interviews or public records.

ANSWER:

First Advantage denies the allegations in Paragraph No. 38 of the Complaint.

COMPLAINT ¶39:

Defendants, and each of them, willfully and/or negligently violated the ICRAA by engaging in one or more of the following acts or omissions, without limitation:

a. Preparing and furnishing an investigative consumer report without complying with, or without first obtaining, the certifications required by Cal. Civ. Code § 1786.16;

b. Providing, furnishing, or using inaccurate, outdated, or misleading information in the investigative consumer report, including but not limited to information that was legally prohibited, incomplete, or unverifiable at the time of use;

c. Failing to implement and maintain reasonable procedures to ensure the maximum possible accuracy of the investigative consumer report furnished concerning Plaintiff;

d. Failing to conduct a timely and adequate reinvestigation after Plaintiff disputed the completeness or accuracy of information contained in the investigative consumer report;

e. Failing to provide required notices to Plaintiff regarding Plaintiff's rights under the ICRAA;

f. Failing to certify or obtain necessary certifications related to the purpose and use of the investigative consumer report;

g. Engaging in any other act or omission that constitutes a violation of the ICRAA under California law.

ANSWER:

First Advantage denies the allegations in Paragraph No. 39 of the Complaint.

COMPLAINT ¶40:

Each of the above-listed acts and omissions independently constitutes a violation of the ICRAA. Plaintiff is informed and believes, and thereon alleges, that Defendants' violations were knowing, intentional, and willful. In the alternative, Defendants acted negligently and with reckless disregard for Plaintiff's rights.

ANSWER:

First Advantage denies the allegations in Paragraph No. 40 of the Complaint.

COMPLAINT ¶41:

As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff has suffered harm, including but not limited to loss of employment opportunities, reputational damage, emotional distress, and other actual damages in an amount to be proven at trial.

ANSWER:

First Advantage denies the allegations in Paragraph No. 41 of the Complaint.

COMPLAINT ¶42:

First Advantage violated Cal. Civ. Code § 1786.20(b) by failing to maintain reasonable procedures to ensure the maximum possible accuracy of the information contained in the Report. The

Report included materially inaccurate, incomplete, and unverifiable employment information that should not have appeared in a report used to evaluate Plaintiff's suitability for employment.

ANSWER:

First Advantage denies the allegations in Paragraph No. 42 of the Complaint.

COMPLAINT ¶43:

First Advantage also violated Cal. Civ. Code § 1786.24 by failing to conduct a reasonable reinvestigation after receiving Plaintiff's written dispute. First Advantage's reinvestigation process resulted in no meaningful corrections.

ANSWER:

First Advantage denies the allegations in Paragraph No. 43 of the Complaint.

COMPLAINT ¶44:

As a direct and proximate result of Defendants' violations of the ICRAA, Plaintiff suffered actual damages including loss of employment opportunity, emotional distress, reputational harm, and financial hardship.

ANSWER:

First Advantage denies the allegations in Paragraph No. 44 of the Complaint.

COMPLAINT ¶45:

Defendants' violations were willful and/or reckless, entitling Plaintiff to statutory damages, actual damages, punitive damages, attorney's fees, and costs pursuant to the ICRAA. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the ICRAA.

ANSWER:

First Advantage denies the allegations in Paragraph No. 45 of the Complaint.

SECOND CAUSE OF ACTION

Violation of the Fair Credit Reporting Act (FCRA)

[Against All Defendants]

COMPLAINT ¶46:

Plaintiff hereby alleges and incorporates by reference each and every allegation stated in the preceding paragraphs of the Complaint as though set forth fully herein.

ANSWER:

First Advantage restates its answers to Paragraph Nos. 1 through 45 as its answer to Paragraph No. 46 of the Complaint.

COMPLAINT ¶47:

Plaintiff is a "consumer" as defined by 15 U.S.C. § 1681a(c). Defendants are "consumer reporting agencies" and/or "persons" as defined by 15 U.S.C. §§ 1681a(f) and (b).

ANSWER:

First Advantage admits the allegations in the first sentence of Paragraph No. 47 of the Complaint. First Advantage also admits that some of its business activities make it an "consumer reporting agency" under the FCRA as to those activities only. First Advantage denies the remaining allegations in Paragraph No. 47 of the Complaint.

COMPLAINT ¶48:

The background check report at issue constitutes a "consumer report" and/or "investigative consumer report" as defined by 15 U.S.C. §§ 1681a(d) and (e), as it was used for employment purposes and contained information bearing on Plaintiff's personal characteristics, character, reputation, or mode of living.

ANSWER:

First Advantage denies the allegations in Paragraph No. 48 of the Complaint.

COMPLAINT ¶49:

Defendants, and each of them, violated the FCRA by engaging in one or more of the following acts or omissions, without limitation:

a. Furnishing a consumer report for employment purposes without first obtaining the certifications required by 15 U.S.C. § 1681b(b)(1);

b. Furnishing or using inaccurate, incomplete, misleading, outdated, or unverifiable information in the consumer report;

c. Failing to follow reasonable procedures to assure maximum possible accuracy of the information contained in Plaintiff's consumer report, as required by 15 U.S.C. § 1681e(b);

d. Failing to maintain adequate internal controls, training, or oversight to ensure compliance with FCRA obligations;

e. Failing to properly verify the accuracy of information in Plaintiff's consumer report after receiving a dispute from Plaintiff;

f. Failing to conduct a timely, reasonable, or good-faith reinvestigation of disputed information, as required by 15 U.S.C. § 1681i;

g. Re-reporting previously disputed and uncorrected information without proper certification or reinvestigation;

h. Engaging in any other act or omission that constitutes a violation of Plaintiff's rights under the FCRA.

ANSWER:

First Advantage denies the allegations in Paragraph No. 49 of the Complaint.

COMPLAINT ¶50:

As a direct and proximate result of the above violations, Plaintiff suffered actual damages, including but not limited to denial of employment, lost income, emotional distress, reputational harm, and other economic and non-economic losses.

ANSWER:

First Advantage denies the allegations in Paragraph No. 50 of the Complaint.

COMPLAINT ¶51:

Each of the above-listed acts and omissions constitutes a separate and independent violation of the FCRA. Defendants' violations were willful and/or reckless, entitling Plaintiff to actual damages, statutory damages, punitive damages, attorney's fees, and costs pursuant to 15 U.S.C. §§ 1681n and 1681o. Alternatively, Plaintiff alleges that Defendants' conduct was negligent, entitling Plaintiff to recover under the FCRA.

ANSWER:

First Advantage denies the allegations in Paragraph No. 51 of the Complaint.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against all Defendants, and each of them, as follows:

1. For declaration that Defendants' practices violate the law;
2. For actual, compensatory, special, and general damages in an amount according to proof;
3. For statutory penalties and punitive damages for each separate statutory violation where allowed by statute;
4. For pre- and post- judgment interest;
5. For reasonable attorney's fees and costs; and
6. For such other and further relief as the Court deems just and proper.

ANSWER:

Plaintiff's allegations constitute a prayer for relief requiring neither an admission nor a denial by First Advantage. To the extent an answer is required, First Advantage denies that Plaintiff is entitled to any relief whatsoever.

DEMAND FOR JURY TRIAL

JURY TRIAL DEMANDED.

ANSWER:

First Advantage admits that Plaintiff demands a trial by jury on all issues so triable.

AFFIRMATIVE AND OTHER DEFENSES

FIRST DEFENSE

Plaintiff is not entitled to statutory or punitive damages because First Advantage engaged in good faith efforts to comply with the FCRA and the ICRAA, First Advantage's reading of its obligations under the FCRA and the ICRAA is and was objectively reasonable, and any purported violations were not willful.

SECOND DEFENSE

To the extent Plaintiff has failed to mitigate her alleged damages, any recovery should be reduced accordingly.

SEYFARTH SHAW LLP

By: */s/ Jasmine J. Stanzick*
Jasmine J. Stanzick

Attorneys for Defendant
First Advantage Background Services Corp.

Date: September 16, 2026

CERTIFICATE OF SERVICE

I hereby certify that, on September 16, 2026, I presented the foregoing with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to counsel of record.

By: */s/ Jasmine J. Stanzick*
Jasmine J. Stanzick